

HOUSE No. 3784

The Commonwealth of Massachusetts

PRESENTED BY:

Todd M. Smola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a motorcycle safety fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>1/16/2025</i>

HOUSE No. 3784

By Representative Smola of Warren, a petition (accompanied by bill, House, No. 3784) of Todd M. Smola for legislation to establish a motorcycle safety fund for motorcycle safety related activities. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a motorcycle safety fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 35SSS the following section:-

3 "Section 35TTT. There shall be established and set up on the books of the commonwealth
4 a separate fund to be known as the Motorcycle Safety Fund for motorcycle safety related
5 activities. Such fund shall consist of all revenues received by the commonwealth under section
6 thirty-four of chapter ninety and which are specifically designed therein for said Motorcycle
7 Safety Fund.

8 All revenues credited under this section shall remain in said Motorcycle Safety Fund,
9 subject to appropriation to establish motorcycle safety related activities."

10 SECTION 2. Section 34 of Chapter 90 of the General Laws, is hereby amended by
11 striking the words "(i) \$2 from every motorcycle registration issued pursuant to section 2 shall be

deposited into the General Fund and used solely for the purpose of promoting and advancing motorcycle safety;" and inserting in place thereof the following:-

"(i) \$2 from every motorcycle registration issued pursuant to section 2 shall be deposited monthly into a separate fund known as the Motorcycle Safety Fund for the purpose of promoting and advancing motorcycle safety; provided, however, that the registrar shall provide rebates of not less than \$150 to persons under the age of 21 who successfully complete a motorcycle basic rider course approved by the registrar pursuant to section 8 and that the total of such rebates shall not exceed 20 per cent of the funds so deposited. All revenues credited under this section shall remain in the Motorcycle Safety Fund to administer a motorcycle safety program, which shall include, but not be limited to, funding registrar approved rider education courses and instructor training, maintaining a policy manual that shall provide minimum requirements for instructors and businesses that offer approved rider education courses in the commonwealth, the Motorcycle Awareness Program in Section 13D of Chapter 71 of the General Laws, and public awareness efforts. The State Treasurer shall not deposit such revenues in, or transfer such revenues to, the General Fund or any other fund other than the Motorcycle Safety Fund. The State Treasurer shall produce annually, an accounting report detailing income and expenditures relating to said Motorcycle Safety Fund, deliverable to the Chairman of the Massachusetts Motorcycle Association (MMA), the house and senate chair of the Joint Committee on Transportation, and the clerks of the senate and house of representatives."